

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal No:
CA/HCC/0261/2019**

Rankothpedige Sujeewa Rohana
Kularatne

**High Court of Chilaw
Case No. HC/47/2017**

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Radha Kuruvitabandara for the Appellant.
Wasantha Perera, DSG for the Respondent.**

ARGUED ON : **20/05/2026**

DECIDED ON : **08/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General for committing the offence as mentioned below:

On or about the 07th October 2009 in Mungandaluwa the accused committed the murder of Kirimudiyanselage Malani which is an offence punishable under Section 296 of the Penal Code.

In the course of the same transaction the accused did hurt to one Muthunayake Pedilage Sanjeewani using a knife and during such transaction, with the knowledge or intention of the Accused may have caused the death of said Muthunayake Pedilage Sanjeewani, thereby committing the attempted murder of Muthunayake Pedilage Sanjeewani which is an offence punishable under Section 300 of the Penal Code.

The trial commenced before the High Court Judge of Chilaw as the Appellant opted for a non-jury trial. The prosecution had led nine witnesses and marked production P1-P3 and closed the case. The Learned High Court

Judge having been satisfied that the evidence presented by the prosecution warranted a case to answer, called for the defence and explained the rights of the accused. The Appellant opted to remain silent in this case.

After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and sentenced him to death on 02/05/2019 for the 1st count. The Appellant was not sentenced on the second count.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given his consent to argue this matter in his absence. At the hearing the Appellant was connected via the Zoom platform from prison.

The Learned Counsel for the Appellant has raised the following grounds of appeal on behalf of the Appellant:

1. That Learned Trial Judge has failed to consider the reliability of the 03 main prosecution witnesses.
2. The prosecution has failed to establish the murderous intention of the Appellant.
3. That the Learned Trial Judge has erred in law in deciding that the prosecution has proved the case beyond reasonable ground and the conviction and sentence are not safe to stand.

The background of the case *albeit* briefly is as follows:

This case mainly rests on the testimonies of three main witnesses, namely PW2, PW4 and PW5 and on circumstantial evidence.

According to PW2, Nobert, he is the husband of the deceased and father of the victim, PW1. Further, the Appellant was the son-in-law of PW2 and the deceased and the husband of PW1 Sanjeewani. According to PW2, his daughter got married to the Appellant on her own accord. His daughter's

marriage life was not peaceful, and as such the couple was separated. Five days before the incident, they had moved to a new rented house, where the incident had taken place. On the day of the incident, at about 5.00am, when his deceased wife had gone out to go the kitchen, the Appellant waylaid and attacked the deceased with a Manna knife. The Appellant held the deceased by her hair and cut her to death using a Manna knife. PW2 had identified the Appellant at that time very correctly.

During the Cross examination, PW2 had stated that due to internal quarrels that happened between them, including his daughter, they had moved to a rented house. He admitted that he and his wife did not like the daughter's marriage. At the time of the incident, the Appellant had also attacked her daughter with the same knife. She had run to the house of PW4, Levis Fernando and saved her life. As his daughter sustained injuries on her head and her hands, he had taken steps to send her to the Chilaw Hospital. According to PW2, after the attack, the Appellant had gone to the direction of Karavitagara on a bicycle.

PW4, Levis Fernando who was a neighbour of the deceased told court that when he was getting ready to go for work, at about 5.00am on the day of the incident PW2 had informed him about the incident at which time, he had gone to the deceased's house. At that time, he had seen the Appellant leaving the place on a bicycle with a manna knife in his possession. As PW1 had sustained injuries, he too had helped her to go to the hospital. PW4 had further said that he had seen the deceased was lying face downward at that time.

PW1 is the legal wife of the Appellant. As their marriage was not entered into with her parents' blessings, there had been internal quarrels between them. As such, the couple was separated and PW1 was living with her parents with her children. On the day of the incident, when she was with her parents in a rented house, on 07.10.2009 hearing cries when she alighted from the bed, she was cut by the Appellant, upon which she had landed on her face and

her hands. She was then rushed to the Chilaw Hospital and transferred to Colombo General Hospital immediately. After receiving treatment for about 9 days, she was transferred to the Chilaw Hospital for further treatment. Due to the restriction under Section 120 of the Evidence Ordinance, she has not given evidence regarding the death of her mother.

According to PW7, the investigation officer, he had gone to the place of incident on 07.10.2009 at 8.00am. He had inspected the body of the deceased which was lying fallen in the second room. The house was provided with electricity and there was no difficulty in identifying persons. Investigation revealed that the deceased's party had moved to the house just five days before the incident.

According to the JMO who held the post mortem examination of the deceased, 14 cut injuries were noted and the cause of death is due to deep extensive necessarily fatal cut injuries of the head due to blows inflicted by a sharp cutting long bladed weapon with unlimited striking surface compared to the injuries.

The Appellant had remained silent when being called for the defence. He had not called any witnesses on his behalf.

In the argument, the Counsel strenuously stressed that the Learned High Judge had failed to consider the reliability of PW2, PW4 and PW5. According to her, PW2 is an interested witness with longstanding hostility towards the Appellant. This is due to the fact that the Appellant, who had married PW2's daughter, had illtreated his daughter thereby he had given evidence which was biased towards the prosecution.

This argument has no merit as PW2 had clearly witnessed the fatal attack on his wife, the deceased. Further, it is evident that PW1 had lived separately away from the Appellant given his abusive nature. PW1 had given details on the Appellant's frequent violent nature after intoxication prior to this attack, which caused her to make the decision to live separately.

The Learned High Court Judge had very correctly analysed his evidence and given reasons as to why he accepts PW2's as cogent evidence.

Next, the Learned Counsel for the Appellant contended that PW4 is also an unreliable witness. It was contended that although he had told the police that he had seen the Appellant going on a bicycle with a sword in his possession, during the trial he had said that the Appellant had ran away from the rear door of the deceased's house with a knife. This witness had given evidence about 10 years after the incident and he was 66 years.

Minor contradictions, inconsistencies or changes regarding trivial matters, which would not affect the core of the prosecution's case must not be a reason for such evidence to be rejected in its entirety. The Court would be responsible in formulating an opinion on the credibility of the witness, and as such, arrive at a finding on whether the deposition of the witness is reliable and trustworthy. Minor variations of statements by a witness cannot be categorised strictly as improvements as such variations may in fact be elaborations of the previous statements made by the same witness.

In such situations, where the evidence of a witness is to be appreciated, it must be considered if the evidence of the witness read as a whole would have a ring of truth. Once this has been established, it would be necessary for the Court to assess the evidence while considering whether the discrepancies and infirmities pointed out would go against the substance of the evidence, and if so, whether the earlier evaluation of the evidence is now shaken and would therefore make such evidence unworthy of belief.

In **State of Uttar Pradesh v. M. K. Anthony [AIR 1985 SC 48]** the court held that:

“While appreciating the evidence of a witness, the approach must be whether the evidence of the witness read as a whole appears to have a ring of truth. Once that impression is formed, it is undoubtedly necessary for the court to scrutinise the evidence more particularly

keeping in view the deficiencies, draw-backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence given by the witness and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief. Minor discrepancies on trivial matters not touching the core of the case, hyper-technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the : root of the matter would not ordinarily permit rejection of the evidence as a whole.....Even honest and truthful witnesses may differ in some details unrelated to the main incident because power of observation, retention and reproduction differ with individuals. Cross examination is an unequal duel between a rustic and refined lawyer.”

In the case of The State Of Tamil Nadu vs Ponnusamy (2026 INSC 507)

it was held:

“No doubt, there are certain contradictions and omissions in their testimonies, however, mere presence of contradictions and omissions does not demolish the credibility of public witnesses, as long as they appear to be natural and are duly explained. The High Court appears to have proceeded on a presumption of falsehood and the findings in the impugned judgment are not based on concrete doubts; rather, the findings are based on suppositions and the Court’s own subjective assessment of how a public witness is supposed to depose before the Court.

When we say that every contradiction is not fatal, we essentially mean that every contradiction carries different weight and the weight is to be adjudged in light of the surrounding evidence and the peculiar facts associated with a witness, including the fact that a public witness is

almost invariably out of his comfort zone while deposing before a Court of law, that too in a murder trial.”

In **The Attorney General v. Sandanam Pitchai Mary Theresa [2011] 2 SLR 292** the court held that:

“Whilst internal contradictions or discrepancies would ordinarily affect the trustworthiness of the witness statement, it is well established that the Court must exercise its judgment on the nature of the inconsistency or contradiction and whether they are material to the facts in issue”.

Further, the evidence given by PW5 corroborates the evidence given by PW2 and PW4 regarding the location of where the body of the deceased had fallen onto, and the assistance given by PW4 to take PW1 to the hospital after the attack. Further, PW5’s evidence identifies that the voice she had heard during this attack was the Accused’s (her father’s) voice. This too has been correctly dealt with by the Learned High Court Judge.

Therefore, the Learned High Court Judge had very correctly dealt the evidence given by the aforementioned three important witnesses. In her judgment she had considered the contradictions and omissions and given plausible reasons as to why she accepts their evidence as cogent.

Learned Counsel for the Appellant finally contended that the prosecution has failed to prove the murderous intention of the Appellant beyond a reasonable doubt.

Vithana and Others v. Republic of Sri Lanka [2007] 1 SLR 169 has been noted to substantiate his argument. In that case Sisira de Abrew, J. held that:

“(1) The intention that is contemplated in the 1st limb of Section 294 is the intention to cause death which is commonly known as murderous intention,”

The existence of a murderous intention generally has to be inferred from the circumstances.

In **Bastian Silva v Appuhamy 4 NLR 47** the Court held that:

“It is not the nature of the wound, but the intention of the accused, which is decisive as to the nature of the crime committed.”

In the case of **R. G. Somapala v The Queen (1969) 72 NLR 121** it was held that:

“There was misdirection in that there was a lack of appreciation of important points of difference between a. 293 and s. 294 of the Penal Code. While the act of causing death with knowledge that the act is likely to cause death is culpable homicide, such an act is not murder, unless either (a) the offender intends to cause bodily injury and has the special knowledge that the intended injury is likely to cause the death of the person injured, or (b) the offender knows that, because the act is so imminently dangerous, there is the high probability of causing death or an injury likely to cause death.”

In the case of **Farook v Attorney General (2006) 3 SLR 174** it was held that:

“As regards the attempt to bring the case to one of culpable homicide not amounting to murder mainly on the basis that there is no intention to cause death, the intention that is required is to cause the injury in fact inflicted. If the intended injury is sufficient to cause death in the ordinary course of nature, the offence is murder;

The injury which caused the death was the one inflicted by the accused. The sufficiency of the injury was objectively established. The sufficiency is the high probability of death in the ordinary way of nature and when this exists and death ensues, and if the causing of the injury is intended, the offence is murder;

The determinant factor is the intentional injury which must be sufficient to cause death in the ordinary course of nature, that is to say, if the probability of death is not so high, the offence does not fall within murder but within culpable homicide not amounting to murder or something less”

In this case, the injuries sustained by the deceased play a decisive role in the determination of this case as to whether the Appellant had actuated the murderous intention or not. Hence, the circumstantial evidence pertaining to the injuries found on the deceased’s body need to be discussed in detail.

According to the JMO there are other cut injuries of the head, neck, back of chest, left hand and left shoulder and the latter is also necessarily fatal. The injuries are concentrated on head and neck areas. When specifically asked regarding which wounds were fatal and would have caused the death, the JMO submitted that Injuries No. 3, 5, 6 and 7 are fatal injuries while Injury No. 4 was likely to cause death in the ordinary course of nature. The distribution and the severity of the injuries is in keeping with over killing phenomenon.

It was noted that some wounds were consistent with an individual attempting to protect oneself. Accordingly, it was seen on the body that the deceased’s hands were made into a fist which the JMO opined was due to the deceased’s attempt to protect herself.

As such, in this case, the JMO had detailed and given comprehensive evidence about the injuries found on the deceased and its causation to death.

In respect of the injuries sustained by PW1, it has been noted that some of the severe injuries required surgery and took almost a year to heal. PW1 has evidently lost motor function in certain fingers as a result of these injuries. As per the evidence, such injuries could have caused death, and are consistent with that of what would be the result of injuries caused by a heavy and sharp weapon.

As discussed under the appeal ground advanced by the Appellant, the prosecution had adduced strong and incriminating direct and circumstantial evidence against the Appellant. The Learned High Court Judge had very correctly analyzed all the evidence presented by both parties and had come to a conclusion that the Appellant is guilty of murder.

Although, the Learned High Court Judge found the Appellant guilty of Attempted murder of his wife PW1, the Learned High Court Judge had not imposed any sentence against the Appellant. I too will not impose any sentence on the second count.

As the Learned High Court Judge had rightly convicted the Appellant for the charge levelled against him in the indictment, I affirm the conviction and dismiss the Appeal of the Appellant.

The Registrar of this Court is directed to send this judgment to the High Court of Chilaw along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL